

23TRCV04169 23TRCV04169

County: los-angeles

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Case Number: 23TRCV04169 Hearing Date: July 30, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JULIO ESCOBAR

, et al.;

Plaintiffs,

vs.

AMERICAN HONDA MOTOR
COMPANY, INC.

;

Defendant.

Case

No.:

23TRCV04169

Hearing

Date:

July
30, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

AMERICAN HONDA MOTOR COMPANY, INC.'S MOTION FOR TERMINATING SANCTIONS

(2)

DEFENDANT

AMERICAN HONDA MOTOR COMPANY, INC.'S request for MONETARY SANCTIONS

MOVING PARTY: Defendant,

American Honda Motor Company, Inc.

RESPONDING PARTY: Plaintiffs, Julio Escobar and Ashley

Escobar

(1)

Defendant

American Honda Motor Company, Inc.'s Motion for Terminating Sanctions is

GRANTED pursuant to Code of Civil Procedure section 2023.030.

(2)

Defendant

American Honda Motor Company, Inc.'s Request for Monetary Sanctions is DENIED

pursuant to Code of Civil Procedure section 2023.030.

The Court considers the moving

papers filed on June 22, 2026, the opposition brief is filed on July 17, 2026, and

the reply brief filed on July 23, 2026.

BACKGROUND

Factual Background

On December 14, 2023, plaintiffs Julio Escobar and Ashley Escobar (collectively, "Plaintiffs") filed the Complaint against defendants American Honda Motor Company, Inc. ("Defendant") and DOES 1 through 10.

On June 22, 2026, Plaintiffs filed the First Amended Complaint ("FAC") against Defendant and DOES 1 through 10. The FAC includes the following causes of action: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5); and (5) Fraudulent Inducement – Concealment.

On October 3, 2025, Defendant served the following discovery requests on both Plaintiffs: (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; and (3) Requests for Production, Set One. (Declaration of Leanna L. H. Vault ("Vault Decl."), ¶ 2.) On February 27, 2026, Defendant filed motions to compel responses to these discovery requests. (Vault Decl., ¶ 4.)

On June 1, 2026, the Court granted the following motions: (1) Defendant American Honda Motor Company's Motion to Compel Responses to Form Interrogatories from Plaintiff Julio Escobar, and (2) Defendant American Honda Motor Company's Motion to Compel Responses to Form Interrogatories from Plaintiff Ashley Escobar. (Compendium of Evidence ("COE"), Exh. A, pp. 13-14.) Furthermore, the Court instructed Plaintiffs to provide verified, code-compliant responses without objections and mandated that they pay Defendant's counsel \$1,200.00 by June 15, 2026. (COE, Exh. A, p. 14.)

On June 2, 2026, the Court granted the following motions: (1) Defendant American Honda Motor Company's Motion to Compel Responses to Special Interrogatories from Plaintiff Julio Escobar, and (2) Defendant American Honda Motor Company's Motion to Compel Responses to Special

Interrogatories from Plaintiff Ashley Escobar.

(COE, Exh. B, p. 7.) Furthermore, the Court instructed Plaintiffs to provide verified, code-compliant responses without objections and mandated that they pay Defendant's counsel \$1,200.00 by June 16, 2026. (COE, Exh. B, p. 7.)

On June 3, 2026, the Court granted the following motions: (1) Defendant American Honda Motor Company's Motion to Compel Responses to Requests for Production from Plaintiff Julio Escobar, and (2) Defendant American Honda Motor Company's Motion to Compel Responses to Requests for Production from Plaintiff Ashley Escobar. (COE, Exh. C, pp. 7-8.) Furthermore, the Court instructed Plaintiffs to provide verified, code-compliant responses without objections and mandated that they pay Defendant's counsel \$1,200.00 by June 17, 2026. (COE, Exh. C, pp. 7-8.)

"Following the Court's June 1, 2, and 3, 2026 Orders, [Plaintiffs'] counsel experienced difficulty communicating with Plaintiffs in order to obtain executed verifications for verified discovery responses. Despite continuing efforts to secure Plaintiffs' cooperation, verified responses could not be completed before the Court-ordered deadlines." (Declaration of Jacob Lister ("Lister Decl."), ¶ 7.) Plaintiffs' counsel is still working to obtain Plaintiffs' verifications. (Lister Decl., ¶ 8.)

However, as of June 22, 2026, Plaintiffs have not provided the required verified responses in violation of the Court's orders dated June 1, 2, and 3, 2026. (Vault Decl., ¶¶ 3, 5-7.) Additionally, Plaintiffs have only complied with one order to pay \$1,200.00 and have ignored the other two orders. (Supplemental Declaration of Leanna L. H. Vault ("Suppl. Vault Decl."), ¶ 11.)

REQUEST FOR JUDICIAL NOTICE

The Court takes Judicial Notice pursuant to Evidence Code Section 452(d) of the following:

1.

The Court's Order, dated June 1, 2026, Exhibit

A;

2.

The Court's Order, dated June 2, 2026, Exhibit

B; and

3.

The Court's Order, dated June 3, 2026, Exhibit

C.

However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are subject to interpretation. (See L.B. Research & Education Foundation v. UCLA Foundation (2005) 130 Cal.App.4th 171, 180, fn. 2, citing Comings v. State Bd. of Education (1972) 23 Cal.App.3d 94.)

LEGAL STANDARD

If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions.

(Code Civ. Proc., §§ 2025.450, subd. (h), 2030.290, subd. (c), 2031.300, subd. (c), 2033.290, subd. (e).) Code of

Civil Procedure section 2023.030 provides that, "[t]o the extent authorized by the chapter governing any particular discovery method ... , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose ... [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process[.]" Code of Civil Procedure

section 2023.010 states, "Misuses of the discovery process include, but are not limited to, the following: ... (d) Failing to respond or to submit to an authorized method of discovery... (g) Disobeying a court order to provide discovery." (Code Civ. Proc., § 2023.010.)

Upon finding a party has engaged in a misuse of the discovery process, the trial court has discretion to impose monetary, issue, or evidentiary sanctions. (Code Civ. Proc., § 2023.030, subds. (a)-(c).)

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

(Code Civ. Proc., § 2023.030, subd. (a).) Issue sanctions may designate facts that shall be taken as established in the action in accordance with the claim of the party adversely affected by a misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (b).) Evidentiary sanctions may prohibit any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (Code Civ. Proc., § 2023.030, subd. (c).)

“Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. [Citation.] Because discovery sanctions are not designed to punish, ‘sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct.’” [Citation.]” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 74 (Kwan).) Discovery sanctions are matters squarely within the trial court's discretion and will not be returned except in instances of extreme abuse. (Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1102.)

“The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (Los Defensores, Inc. v. Gomez (2014) 223 Cal.App.4th 377, 390, quoting Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

“Generally, ‘[a] decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’” (Los Defensores, Inc. v. Gomez, supra, 223 Cal.App.4th at p. 390, citation omitted.)

“Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed one or more discovery orders.” (Los Defensores, Inc. v. Gomez, supra, 223 Cal.App.4th at p. 390, citing Lang v. Hochman, supra, 77 Cal.App.4th at pp. 1244-1246 [discussing cases]; see, e.g., Collisson & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1617-1622 [terminating sanctions imposed after defendants failed to comply with one court order to produce discovery]; Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, 491, disapproved on other grounds in Garcia v. McCutchen (1997) 16 Cal.4th 469, 478, fn. 4 [terminating sanctions imposed against plaintiff for failing to comply with a discovery order and for violating various discovery statutes].)

Thus, incremental sanctions are not necessary.

DISCUSSION

Defendant seeks the imposition of the following sanctions: (1) terminating sanctions that would result in the dismissal of Plaintiffs’ First Amended Complaint; (2) in the event that terminating sanctions are not granted, evidentiary or issue sanctions that would prohibit Plaintiffs from testifying at trial and restrict their expert witnesses from presenting any opinions based on observations or inspections of the subject vehicle; and (3) an award of \$1,410.00 in monetary sanctions. (Motion, pp. 3:13-6:23.) This request for relief is predicated on Plaintiffs’ failure to comply with the Court’s orders dated June 1, 2, and 3, 2026. (Motion, pp. 2:2-6, 3:13-6:23.)

On June 1, 2026, the Court granted the following motions: (1) Defendant American Honda Motor Company’s Motion to Compel Responses to Form Interrogatories from Plaintiff Julio Escobar, and (2) Defendant American Honda Motor Company’s Motion to Compel Responses to Form Interrogatories from Plaintiff Ashley Escobar. (COE, Exh. A, pp. 13-14.) Furthermore, the Court instructed Plaintiffs to provide verified, code-compliant responses

without objections and mandated that they pay Defendant's counsel \$1,200.00 by June 15, 2026. (COE, Exh. A, p. 14.)

On June 2, 2026, the Court granted the following motions: (1) Defendant American Honda Motor Company's Motion to Compel Responses to Special Interrogatories from Plaintiff Julio Escobar, and (2) Defendant American Honda Motor Company's Motion to Compel Responses to Special Interrogatories from Plaintiff Ashley Escobar. (COE, Exh. B, p. 7.) Furthermore, the Court instructed Plaintiffs to provide verified, code-compliant responses without objections and mandated that they pay Defendant's counsel \$1,200.00 by June 16, 2026. (COE, Exh. B, p. 7.)

On June 3, 2026, the Court granted the following motions: (1) Defendant American Honda Motor Company's Motion to Compel Responses to Requests for Production from Plaintiff Julio Escobar, and (2) Defendant American Honda Motor Company's Motion to Compel Responses to Requests for Production from Plaintiff Ashley Escobar. (COE, Exh. C, pp. 7-8.) Furthermore, the Court instructed Plaintiffs to provide verified, code-compliant responses without objections and mandated that they pay Defendant's counsel \$1,200.00 by June 17, 2026. (COE, Exh. C, pp. 7-8.)

However, as of June 22, 2026, Plaintiffs have not provided the required verified responses, violating the Court's orders dated June 1, 2, and 3, 2026. (Vault Decl., ¶¶ 3, 5-7.) Additionally, Plaintiffs have complied with only one of the Court's monetary sanctions orders, which mandated payment of \$1,200.00, while neglecting to pay the outstanding balance of \$2,400.00, thereby constituting further violations of the Court's orders. (Suppl. Vault Decl., ¶ 11.)

The defendant requests that the Court exercise its authority to impose terminating sanctions due to Plaintiffs' repeated failures to participate in the discovery process and to comply with several court orders. (Motion, pp. 3:21-5:12.)

Plaintiffs' counsel contends that "At no time did Plaintiffs or their counsel intend to disregard this Court's Discovery Orders or to willfully obstruct the discovery process. Plaintiffs remain committed to meaningful participation in this

litigation and to full compliance with their discovery obligations.” (Lister Decl., ¶ 9.) However, such claims are undermined by Plaintiffs’ actions. First, the Court observes that Defendant served discovery requests on Plaintiffs on October 13, 2025.

(Vault Decl., ¶ 2.) Therefore, Plaintiffs have been aware of their discovery obligations for several months yet continue to neglect them.

Second, Plaintiffs’ counsel informs the Court that they are having difficulty communicating with Plaintiffs about executing the verifications necessary to comply with the Court’s orders. (Lister Decl., ¶ 7.) Plaintiffs’ counsel contends that “Plaintiffs cannot intentionally disregard Court orders of which they are presently unaware.” (Opp., p. 4:11-13.)

This implication suggests that, due to the loss of communication with Plaintiffs, the Court cannot conclude that Plaintiffs are willfully disobeying their orders or obligations. (Opp., p. 4:6-21.)

The Court disagrees. The Court finds that an absence of several months strongly indicates that Plaintiffs no longer wish to participate in this case. As asserted by Defendant, this serves as evidence of a “conscious choice not to comply, not a momentary lapse.” (Reply, p. 2:7.) When an individual files a complaint against another party, they are aware of the resulting obligations. They understand the necessity of contacting their counsel to fulfill these obligations. By choosing to ignore their counsel, Plaintiffs signal a lack of interest in complying with their obligations and the Court’s orders.

Third, the Court notes that Plaintiffs’ counsel has not presented any evidence to suggest that Plaintiffs are unaware of the overdue discovery responses or the orders issued by the Court. Instead, Plaintiffs’ counsel only asserts that they had “experienced difficulty communicating with Plaintiffs in order to obtain executed verifications for verified discovery responses.” (Lister Decl., ¶ 7.) This statement does not demonstrate that Plaintiffs are unaware of the overdue discovery or the Court’s orders.

This Court recognizes that the imposition of terminating sanctions is warranted only in extreme cases where multiple court orders have been violated. Here, Plaintiffs have each violated

five court orders. Moreover, there is no evidence to suggest that Plaintiffs intend to comply with the Court's orders or to participate in the discovery process. Therefore, Defendant's request for terminating sanctions is GRANTED. Defendant's request for monetary sanctions is DENIED. The imposition of monetary sanctions inappropriate given the severe nature of the sanction imposed.

ORDERS

1)

Defendant

American Honda Motor Company, Inc.'s Motion for Terminating Sanctions is GRANTED, and Plaintiffs' First Amended Complaint filed on June 22, 2026, is DISMISSED.

2)

Defendant

American Honda Motor Company, Inc.'s Request for Monetary Sanctions is DENIED.

3)

All

Future Court Hearings are advanced and vacated.

4)

Defendant

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 30, 2026

Tamara

Hall

Judge

of the Superior Court